

Amended Excerpts

1. Line 95 through 109:

- 95 (a) "Plan review" means the same as that term is defined in Section 17-79-810.
- 96 (b) "Qualifying parcel" means a parcel of land in a county that:
- 97 (i) was created by a written instrument, other than a subdivision plat, before the
- 98 county adopted a land use ordinance $\hat{H} \rightarrow [\{ \text{regulating the parcel} \}]$ that requires
- 98a county subdivision approval to create a lot for a single-family dwelling in the zone
- 98b where the parcel is located $\leftarrow \hat{H} ; \hat{H} \rightarrow [\{ \text{or} \}]$ and
- 98c (ii) is located in a zone where a single-family dwelling is a permitted use.
- 99 [{(ii) is similar to a lot or parcel that:}]
- 100 [{(A) has the same zoning designation; and}]
- 101 [{(B) (I) conforms to applicable development standards for a single-family}] $\leftarrow \hat{H}$
- 102 $\hat{H} \rightarrow [\{ \text{residential lot;} \}]$
- 103 [{(II) at some point in the past was approved, recognized, or treated as a lot or}] $\leftarrow \hat{H}$
- 104 $\hat{H} \rightarrow [\{ \text{parcel for which a single-family dwelling was a conforming use; or}]$
- 105 [{(III) contains a single-family dwelling that the county recognizes as a}] $\leftarrow \hat{H}$
- 106 $\hat{H} \rightarrow [\{ \text{conforming use.}] $\leftarrow \hat{H}$$
- 107 (2) Subject to Subsection (3) and Section 17-79-810, a county shall accept and process a
- 108 plan review application for a single-family dwelling on a qualifying parcel that is made
- 109 by the qualifying parcel's owner of record, if: